

TENTATIVE RULINGS

FOR: August 20, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Parker William Strouss

23PR000124

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on August 22, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall

prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Erica Bradshaw

23PR000210

[1] REVIEW – 1ST YEAR

[2] ACCOUNTING

TENTATIVE RULING: Good cause appearing, and no objection having been filed, Conservator’s request for a 6-week continuance is GRANTED. Both matters are CONTINUED to September 22, 2026, to allow for preparation and filing of the accounting documents. The Clerk is directed to send notice to the parties.

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In The Matter of Julia A. Graham 2007 Revocable Trust

24PR000074

[1] STATUS UPDATE

APPEARANCE REQUIRED

[2] MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

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Conservatorship of Carlo Manuel Barrera

25PR000086

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on June 27, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Katherine Roxanne Wright

PR24886

REVIEW HEARING

APPEARANCE REQUIRED.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Denny Mayeda v. Grant Reynolds et al

21CV001212

DEFENDANT’S MOTION TO DISMISS COMPLAINT

TENTATIVE RULING: The motion is GRANTED. The Court orders the matter dismissed with prejudice.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Grant Reynolds (“Defendant”) moves, pursuant to California Code of Civil Procedure § 2023.030, subdivision (d),¹ for an order dismissing this case with prejudice.

Section 2023.030, subdivision (d) authorizes a court to impose a terminating sanction against anyone engaging in conduct that is a misuse of the discovery process. (See § 2023.030, subd. (d).) It provides that a terminating sanction may be imposed in the form of an order dismissing the action, or any part of the action, of that party misusing the discovery process. (*Id.*, subd. (d)(3).)

The Notice of Motion identifies 11 separate grounds for dismissal. (See Notice of Motion, pp. 1-3.) However, only 3 of those 11 grounds pertain to discovery. (*Ibid.*) Those grounds are as follows: (1) Since the date of the September 17, 2021 hearing on Plaintiff’s Motion for Injunctive Relief, Plaintiff has failed to seek any discovery from Defendant, (2) Since the date of the September 17, 2021 hearing, Plaintiff and/or Plaintiff’s former attorney have failed to file any responses to any of Defendant’s motions for discovery requiring Defendant to file motions to compel responses, and (3) Without further discovery responses, it will be difficult if not impossible to continue this case, let alone be able to fairly assess liability to Defendant. (*id.*, ¶¶ 7, 8, 11.)

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

B. DEFENDANT’S SHOWING

Defendant shows that the Court previously (1) imposed monetary sanctions against Plaintiff, in three separate orders dated April 9 and 24, 2026, for Plaintiff’s failure to respond to discovery propounded in October 2025, (2) deemed admitted the matters and genuineness of documents specified in Defendant’s Requests for Admission, Set One, and (3) ordered Plaintiff to provide responses and documents to Defendant’s Special Interrogatories, Set One, and Request for Production of Documents, Set Two. (Declaration of Grant Reynolds (“Reynolds Decl.”), ¶¶ 5, 8-11, Exh. F; see also 4/9/26 and 4/23/26 Minute Orders.) Defendant filed and served a Notice of Entry of those discovery orders on May 11, 2026. (*Id.*, ¶ 11; see also 5/11/26 Notices of Entry of Orders.) Defendant further shows that, as of the date on which Defendant’s Declaration was executed, June 12, 2026, Plaintiff has failed to comply with the Court’s discovery orders, in that no responses have been provided and no sanctions have been paid. (Reynolds Decl., ¶ 11.)

Defendant argues that this Court should therefore conclude that no responses will be forthcoming and to dismiss this case with prejudice.

C. DISCUSSION

If a party fails to obey an order compelling a response to interrogatories or document demands, the court may make those orders that are just, including the imposition of a terminating sanction under section 2030.030). (§§ 2030.290, subd. (c), 2031.300, subd. (c).)

Two facts are generally prerequisite to the imposition of non-monetary sanctions: (1) there must be a failure to comply with a court order; and (2) the failure must be willful. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102.) It is the moving party’s burden to demonstrate the responding party’s failure to obey the earlier discovery order. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.) Then the burden of proof shifts to the party seeking to avoid sanctions to establish a suitable justification for her conduct. (*Ibid.*)

Plaintiff has willfully not complied with the Court’s three discovery and sanctions orders dated April 9 and 24, 2026, as he has not provided initial responses and documents and has not paid the sanctions to Defendant. On this record, it is clear that the imposition of lesser sanctions did not accomplish the object of discovery—Plaintiff’s production of discovery responses and documents. “If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (*Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701-02 quoting *Doppes v. Bentley* (2009) 174 Cal.App.4th 967, 992.) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, at 702.)

Plaintiff’s repeated failure to comply with his discovery obligations and the Court’s orders is to the detriment of Defendant’s right to receive a fair trial. Moreover, Plaintiff has

submitted no opposition to Defendant’s discovery and sanctions motions, including the instant motion for terminating sanctions. Therefore, there is nothing in the record to suggest that any lesser remedy short of dismissal would change Plaintiff’s conduct. (See *Del Junco v. Hufnagel* (2007) 150 Cal.App.4th 789, 799-800 [holding that terminating sanctions were warranted when it became clear that the plaintiff had no intention of answering discovery or complying with court orders and had shown no interest in taking part in the case].)

Based on the foregoing, the Court finds that terminating sanctions are warranted. Accordingly, Defendant’s motion is GRANTED.

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Blue Sky Utility LLC et al v. Bright Power, Inc

24CV001768

DEMURRER TO CROSS-COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED. Bright Power, Inc. is granted 10 Court days’ leave to amend the Cross-Complaint, limited however, to allegations relevant to causes of action sounding in fraudulent misrepresentation and/or fraudulent concealment.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Cross-Defendants Blue Sky Utility LLC, Blue Sky Utility 2021 IV LLC, Blue Sky Utility Holding LLC, Blue Sky Utility 2021 VII LLC, Blue Sky Utility 2021 XIII LLC, Blue Sky Utility 2021 XII LLC, Blue Sky Utility 2022 I LLC, and Blue Sky Utility 2022 II LLC (collectively Blue Sky) demur, pursuant to Code of Civil Procedure 430.10, subdivision (e), to the fourteenth and fifteenth causes of action asserted against them through the Cross-Complaint of Bright Power, Inc. (Bright Power) on grounds that the Cross-Complaint fails to allege facts sufficient to state either cause of action.

Each of the first thirteen causes of action (including two distinct causes of action labelled “Eleventh Cause of Action”) assert claims for breach of contract; each cause of action based on a unique contract. The “Fourteenth Cause of Action” purports to state a claim for fraudulent inducement (see *id.* at 22:6, *et seq.*) and the “Fifteenth Cause of Action” purports to state a claim for fraudulent concealment (see *id.* at 24:8, *et seq.*).

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . (e) The pleading does not

state facts sufficient to constitute a cause of action . . . [and/or] . . . (f) The pleading is uncertain.” (Code Civ. Proc., § 430.10.)

A demurrer on grounds that a plaintiff has failed to state a claim is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such demurrer “‘does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.’ [Citation.]” (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because, “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

In order to state a claim sounding in fraud, a plaintiff is required to plead “(a) misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Phillipson & Simon v. Gulsvig* (2007) 154 Cal.App.4th 347, 363.) . In order to be actionable, the misrepresentation must either be made to the plaintiff (who must then rely upon the misrepresentation) or to another or others who the defendant intended or reasonably expected would repeat it to the plaintiff. (See, e.g., CACI Nos. 1900 and 1906.) “A fraudulent state of mind includes not only knowledge of falsity of the misrepresentation but also an “‘intent to ... induce reliance’ on it.” [Citation.]” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 976.)

California’s fraudulent concealment statute provides that “[o]ne who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers.” (Civil Code § 1709.) For purposes of that section, a “deceit” includes, “[t]he suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact.” (Civil Code § 1710, subd. (3).) “[T]he elements of a cause of action for fraud based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Jones v. ConocoPhillips Co., supra*, 198 Cal.App.4th at 1198.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates

pleading facts which show how, when, where, to whom, and by what means the representations were tendered. A plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645. Internal quotes and citations omitted.) Concealment, as a species of fraud, must be pled with specificity. (See *Jones v. ConocoPhillips Co.*, *supra*, 198 Cal.App.4th at 1198.)

The Court finds that the allegations of the Cross-Complaint are insufficient to satisfy this heightened pleading standard as to either the purported cause of action for fraudulent misrepresentation or the purported cause of action for fraudulent concealment.

The Cross-Complaint alleges some fourteen separate contracts, each between Bright Power and one or more of eleven separate entity defendants. In this context, Bright Power fails to identify *which entity Defendant* is responsible for the alleged misrepresentations and/or concealment supporting its causes of action. Rather, each of the allegations supporting the two fraud causes of action speak of the “cross-defendants” as an undifferentiated group. (See, Cross-Complaint at ¶¶ 168-173, 175-176, 178-184, and 186-189.) These abstract allegations, in the context of the number of transactions and Defendants alleged in the preceding sections of the Cross-Complaint, are insufficient, even, to acquaint Defendants with the nature of the fraudulent claims being asserted. Moreover, there are no allegations of the “names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Lazar v. Super. Ct.*, *supra*, 12 Cal.4th at 645.)

Bright Power, through the Opposition argues that Paragraph 11 provides the specific allegations necessary to support each cause of action. Through that paragraph Bright Power alleges that “[i]t was agreed between the parties to each EPC Agreement that BSU would be responsible for approval and payment of BPI invoices associated with each project/contract and that BSU was the actual party to the contract with BSU, to wit, the “owner.” This fact was confirmed in writing on March 7, 2024 by Allon Raveh, CEO of Blue Sky to Clair Hobday, CEO of Bright Power.” Each of the eleven entity defendants named in the Cross-Complaint has the phrase “Blue Sky” in its name. The phrase “Blue Sky,” standing alone, however, is not defined in the Cross-Complaint as referring to any specific entity. It is therefore entirely unclear to the Court which entity-Defendant Allon Raveh is alleged to be the CEO of. Even if this were clear, while the allegation may be sufficient to show ratification on the part of that single entity-Defendant, it is not sufficient to support a claim for fraud against each of the Defendants.

Finally, Bright Power argues that the Cross-Complaint states a claim for promissory fraud and, therefore, the demurrer should be overruled. First, the instant demurrer is not directed at any claim for promissory fraud. Consequently, the question of whether the Cross-Complaint alleges facts sufficient to state such cause of action is not properly before the Court. Second, a claim for promissory fraud is subject to the same heightened pleading standard as other fraud-based claims. (See *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060.)

Based on the foregoing, the demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The Court finds, from the nature of the claims and the arguments asserted, a reasonable possibility that Bright Power can amend to state one or more claims sounding in fraud. For this reason, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

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****at 9:30 a.m.****

McGrew Behavior Intervention Services, Inc. v. Israel Delgado

25CV001274

ATTORNEYS FEES

TENTATIVE RULING: Mr. Delgado’s request for an award of attorneys’ fees is GRANTED IN PART. Mr. Delgado is awarded attorneys’ fees and in the amount of \$4,163.50.

On November 3, 2025, Defendant Israel Delgado specially moved for an order striking the Verified Complaint, as a strategic lawsuit against public policy (SLAPP) pursuant to Code of Civil Procedure section 425.16 (Section 425.16 or Anti-SLAPP Statute). Through the supporting memorandum filed in support of the Motion, Mr. Delgado “request[ed] reasonable fees upon prevailing.” (See Support Memo at 7:3-4.)

By Minute Order of July 30, 2026, the Court found that the Complaint was a SLAPP and ordered it stricken pursuant to Section 425.16. The Court continued the request for an award of attorneys’ fees to this date.

With exceptions having no apparent relevance here, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1) (Section 425.16).) “Thus, under Code of Civil Procedure section 425.16, subdivision (c), any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees. The fee-shifting provision was apparently intended to discourage such strategic lawsuits against public participation by imposing the litigation costs on the party seeking to ‘chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances.’ [Citation.]” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

The Court finds that Mr. Delgado is a prevailing defendant pursuant to Section 425.16, subdivision (c)(1). (See Minute Order of July 30, 2026.) The Court further finds that the hourly rate charged by counsel is consistent with those typically charged in the community for similar work. (See Declaration of Mohammed Y. Kashef at ¶ 9.) The Court finds that 10.8 hours is a reasonable amount of time required to review the Complaint in the action and prepare the instant Motion. (See *id.* at ¶ 4.) Moreover, the Court finds the \$60.00 filing fee and \$73.50 service fee are reasonable and appropriate. (See *id.* at ¶¶ 12 and 13.) However, the Court does not find the evidence related anticipated future costs sufficiently certain to meet Defendant’s burden of proof as to those fees. (See *id.* at ¶¶ 5-7.) Thus, the evidence before the Court supports an award of fees actually incurred in the amount of (\$375/hr x 10.8 hrs =) \$4,050 plus costs of (\$60.00 + \$73.50 =) \$113.50.

Based on the foregoing, Mr. Delgado's request for an award of attorneys' fees is GRANTED IN PART. Mr. Delgado is awarded attorneys' fees in the amount of \$4,050.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In the Matter of Revocable Trust of Beverly J. Kastan est. 3/11/2011 23PR000045

- [1] CONFERENCE STATUS
- [2] PETITION FOR ORDER INVALIDATING TRUST AND DETERMINING OWNERSHIP OF TRUST PROPERTY BY ESTATE (filed February 16, 2023)
- [3] OBJECTIONS TO ACCOUNTING OF TRUSTEE; PETITION FOR ORDER DIRECTING TRUSTEE TO FILE AMENDED ACCOUNTING; AND PETITION FOR ORDER DIRECTING ATTORNEY-IN-FACT TO FILE ACCOUNTING (filed October 10, 2023)

APPEARANCE REQUIRED

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Estate of Marilyn Louise Quint

23PR000119

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The matter is CONTINUED to September 17, 2026 at 8:30 a.m. in Dept. B to allow Administrator to address the following issue. There appears to be an error in Schedule C of Exhibit B attached to the Petition. (See Pet., PDF pp. 19-20.) Schedule C indicates a total amount of disbursements of \$583,909.23 (= \$564,466 on p. 19 + \$19,443.23 on p. 20). However, the Petition and Summary of Account both indicate a total amount of disbursements of \$592,531.99. (See Pet., p. 3 ln. 9, p. 13 (Exh. B).)

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Conservatorship of Dustin Farfan Hernandez

25PR000111

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on August 22, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Ariel J. Hughes

26-44501

REVIEW HEARING

APPEARANCE REQUIRED
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Conservatorship of Larissa Anne Baity

PR23559

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years on August 22, 2028, at 8:30 a.m. in Dept. B The Court Investigator shall prepare a biennial investigator report for the biennial review hearing date. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

City of Napa v. Brian R. Silver et al

25CV000143

CITY’S MOTION FOR ATTORNEYS’ FEES AND COSTS

TENTATIVE RULING: The Clerk is directed to STRIKE the Opposition filed August 17, 2026, by Respondent Brian Silver. The motion is GRANTED IN PART. The City is awarded attorneys’ fees in the amount of \$14,415, costs of suit in the amount of \$1,926.36 and costs of enforcement in the amount of \$2,448.72 for a total of \$18,790.08.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

The instant Motion was originally set for hearing on July 28, 2026. On July 20, 2026, Respondent Brian Silver applied, *ex parte*, for an order continuing the hearing and resetting the deadline for filing opposition thereto. The Court granted the application, and on July 22, 2026, entered an Order in the form proposed by Mr. Silver. That Order provides that “[t]he hearing on Petitioner City of Napa’s Motion for Attorneys’ Fees . . . is continued to August 20, 2026 . . . [¶]

Respondent shall file and serve his opposition to Petitioner's Motion for Attorneys' Fees no later than nine (9) court days before the new hearing date, in accordance with California Code of Civil Procedure section 1005(b)."

On August 17, 2026, Respondent, without further leave of Court, filed a 26-page Opposition with some 316 pages of exhibits attached thereto. Because the Opposition was filed well past the deadline established by the Court's July 22, 2026, Order and Code of Civil Procedure section 1005, subdivision (b), and further because it exceeds the page limits of California Rules of Court, rule 3.1113, subdivision (b), the Court orders the Opposition STRICKEN from the record. (See Code Civ. Proc., § 436, subd. (b).)

Petitioner City of Napa (City) moves, pursuant to Health and Safety Code sections 17980.7, subdivision (c)(11) and 17980.7, subdivision (d)(1), Code of Civil Procedure section 1032, subdivision (a)(4), and Napa Municipal Code sections 1.16.010-050, for an order: (1) Declaring that the parcel of real property known as 810, 814 and 816 Brown Street, Napa, California 94559, identified by Assessor's Parcel Number 003-222-011-000 (Subject Property) was substantially dangerous to the health and safety of residents and the public prior to the initiation of this action; (2) Declaring the City the prevailing party in this action; (3) Awarding the City its attorneys' fees and costs in the amount of \$20,040.08 (\$15,665.00 in attorneys' fees, \$1,926.36 in litigation costs and \$2,448.72 in City code enforcement costs), and Any further amounts the Court deems appropriate.

The prevailing party in an action to abate a nuisance based on building code violations, pursuant to Health & Safety Code section 17980, *et seq.*, "shall be entitled to reasonable attorney's fees and court costs as may be fixed by the court." (Health & Saf. Code, § 17980.7, subd. (c)(11).)

The Court finds that the City attained substantially, if not all, of its objectives through the instant litigation, and is, therefore, the prevailing party for purposes of awarding fees and costs. "[W]e have taken a broad, pragmatic view of what constitutes a 'successful party.' 'Our prior cases uniformly explain that an attorney fee award may be justified even when plaintiff's legal action does not result in a favorable final judgment. [Citations.]" (*Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 565.)

Moreover, "If the court finds that a building is in a condition that substantially endangers the health and safety of residents pursuant to Section 17980.6, upon the entry of any order or judgment, the court shall . . . [o]rder the owner to pay all reasonable and actual costs of the enforcement agency, including, but not limited to, inspection costs, investigation costs, enforcement costs, attorney's fees or costs, and all costs of prosecution." (Health & Saf. Code, § 17980.7, subd. (d)(1).)

The Court finds, from the evidence presented, that the subject building was, prior to the litigation, in a condition that substantially endangered the health and safety of residence pursuant to Health & Safety Code section 17980.6.

The Court finds that the rate charged by counsel for the City in this action is well within the range typically charged in the community for similar work. (See Declaration of Amanda A. Pope at ¶ 27 (Pope Decl.).) The Court also finds that the acts undertaken by counsel, for which the City seeks an award of attorneys' fees, were reasonably necessary to the prosecution of the action, and further finds that the amount of time spent on such acts were reasonable. (See *id.* at ¶ 33, and Exhs. A, D, and E.) However, the Court does not award attorneys' fees for anticipated future costs. (See *id.* at ¶ 33.)

The Court also finds that the amounts and types of costs set forth in the Memorandum of Costs appear reasonable on their face. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267; *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 243.)

Finally, "The city shall be entitled to recover its costs related to enforcing any code violation. . . . The city is authorized to impose, on each responsible person, a fee to cover enforcement costs, in addition to any applicable fines or penalties." (City of Napa Municipal Code at § 1.16.050, subd. (A) (Napa Muni. Code).) "The amount of any fees to cover enforcement costs . . . may be established by documentation of the actual enforcement costs incurred by the city." (*Id.* at subd. (C).)

The Court finds that the City has produced evidence sufficient to support its request for enforcement costs in the amount of \$2,448.72. (See Pope Decl. at ¶ 33, Exh. D.)

Mr. Silver appears to concede all of the foregoing by failing to file anything by way of opposition to the instant Motion.

Based on the foregoing, the Motion is GRANTED IN PART. The City is awarded attorneys' fees in the amount of \$14,415, costs of suit in the amount of \$1,926.36 and costs of enforcement in the amount of \$2,448.72 for a total of \$18,790.08.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

DEMURRER OF DEFENDANTS NEWCO CAPITAL GROUP LLC AND NEWCO CAPITAL GROUP VI LLC TO COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to September 24, 2026 at 8:30 a.m. in Dept. B.

Defendants failed to include in the notice of the Demurrer proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court's tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of service of the Amended Notice pursuant to Rules of Court, rule 3.1300, subd. (c).